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Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the Court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, proposed litigation costs, administrative costs, and the requested representative payment of \$10,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk.

1. The settlement is preliminarily approved and this Motion is **granted**.
2. the Court will execute the proposed order lodged March 2, 2026, consistent with this tentative ruling and the court clerk shall attach a copy of this tentative ruling. Where the provisions of the proposed order lodged March 2, 2026 are inconsistent with or conflict the terms of this ruling, this ruling shall prevail.
3. Class counsel are directed to serve this order to parties/counsel on the service list.
4. No appearance is required at the May 6, 2026 hearing.

8. 9:00 AM CASE NUMBER: C23-01839
CASE NAME: DREW MALM VS. SCOTT HAMMEL
***HEARING ON MOTION IN RE: LEAVE TO FILE AMENDED COMPLAINT**
FILED BY: MALM, DREW
TENTATIVE RULING:

Plaintiff's Motion for Leave to File a SAC is continued to be heard concurrently with Defendant's MSJ/A to Plaintiff's FAC on May 13, 2026, 9:00 am in Department 16.

9. 9:00 AM CASE NUMBER: C24-00068

CASE NAME: JOSHUA LOPEZ VS. VEOLIA NORTH AMERICA, LLC., A DELAWARE LIMITED LIABILITY COMPANY

*HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT
FILED BY: LOPEZ, JOSHUA

TENTATIVE RULING:

Summary

Plaintiff Joshua J. Lopez, on behalf of himself and others similarly situated, ("Plaintiff") seeks preliminary approval of the proposed Class Action and PAGA Settlement ("Settlement" or "Settlement Agreement") entered with Defendants Veolia North America, LLC, Veolia Water West Operating Services, Inc., Veolia Water North America-West, LLC, Veolia Water Contract Services USA, LLC, and Veolia Water North America Operating Services, LLC ("Defendants") (Plaintiff and Defendants are collectively herein referred to as the "Parties"). The Settlement Agreement is preliminarily approved and this Motion is **granted** as set forth herein. No appearance is required at the May 6, 2026 hearing.

Background

On January 9, 2024, Plaintiff Joshua J. Lopez ("Plaintiff") commenced the Action by filing a complaint alleging causes of action against Defendants for (1) Failure to Pay Minimum Wages; (2) Failure to Pay Wages and Overtime; (3) Meal Period Violations; (4) Rest Period Violations; (5) Violation of Labor Code §226(a); (6) Violation of Labor Code §221; (7) Violation of Labor Code §204; (8) Violation of Labor Code §203; (9) Failure to Pay for On-call Time Under Labor Code §§ 204, 510, 1194; (10) Failure to Maintain Records Required under Labor Code §§ 1174, 1174.5; (11) Failure to Produce Requested Employment Records under Labor Code §§ 226, 1198.5; and (12) Violation of Business & Professions Code §17200 et seq. (Manus Decl., ¶ 2.)

On January 9, 2024, and pursuant to Labor Code §2699.3, subd.(a), Plaintiff gave timely notice to the LWDA and Defendants that Plaintiff intended to proceed with a representative action under PAGA (LWDA-CM-1004014-24). On March 14, 2024, after the 65-day statutory period passed, Plaintiff filed his First Amended Complaint, which added claims for penalties under PAGA, Labor Code § 2698. On July 16, 2025, Plaintiff filed his Second Amended Complaint (the "Operative Complaint"), which added additional Defendants. (Id. at ¶ 3.) Plaintiff contends, via the Operative Complaint, that Defendants violated California's wage and hour laws by failing to pay all wages due including all minimum wages, overtime wages, failing to provide all meal periods and rest periods, failing to maintain records; failing to provide accurate itemized wage statements, failing to timely pay final wages due during and upon separation of employment, and thereby also violating California Business & Professions Code sections 17200, et seq., and incurring penalties under PAGA. (Id. at ¶ 4.)

Plaintiff respectfully requests that this Court conditionally certify the below-defined class for settlement purposes only, under Code of Civil Procedure section 382; appoint Class Counsel and Plaintiff as the Class Representative; preliminarily approve the proposed Settlement, including the Private Attorney General Act of 2004 ("PAGA") portion of the Settlement, which allocates \$75,000.00 to penalties pursuant to the PAGA; direct that the Class Notice be disseminated to the Class; and

schedule a hearing for Final Approval of the Settlement and request for Attorneys' Fees and Costs, and the Class Representative Enhancement Award.

The Settlement Agreement proposes the following Class: All non-exempt, hourly employees who worked for Defendants in California at the Settling Locations (defined as the seventeen (17) municipal water sites located in Arvin, CA, Burlingame, CA, Ontario, CA (2), Discovery Bay, CA, East Palo Alto, CA, Fillmore, CA, Hollister, CA, Lathrop, CA, Palm Springs, CA, Richmond, CA, Rio Vista, CA, Santa Paula, CA, Banning, CA, Burbank, CA, Jurupa Valley, CA, and El Segundo, CA) during the Class Period (defined as January 9, 2020, through April 30, 2025.) (Id. at ¶ 13, Ex. 1, pp. 3, 7.) There is total of approximately 29,000 Workweeks worked by Class Members during the Class Period, resulting in a recovery of an estimated \$25.74 per Workweek (estimated NSA of \$746,500 divided by 29,000). Each Class Member will receive an average Individual Settlement Award of approximately \$2,262.12 (estimated NSA of \$746,500 divided by 330 Class Members), with the highest estimated Individual Settlement Award of approximately \$7,129.98 (total weeks in the Class Period (277) multiplied by \$25.74). (Manus Decl., ¶ 7.)

Additional terms include: (1) Class Counsel Fees \$435,000 (1/3 of the Gross Settlement Amount), (2) Class Counsel costs for actual expenses Up to \$30,000 incurred; (3) Administration Costs Estimated to be up to \$8,500; (4) Class Representative Enhancement Award \$10,000 to Plaintiff Joshua J. Lopez , (5) PAGA Penalties \$75,000 (\$56,250 to LWDA; \$18,750 to Aggrieved Employees). The Parties have agreed on Apex Class Action Administrators ("Apex" or "Administrator") as the Administrator and respectfully request that this Court appoint Apex to handle the claims administration procedures, including the Class Notice procedure, including posting relevant case-related settlement documents, including the judgment on Apex's website.

Analyses

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141

Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs, the administration costs, and the requested representative payment of \$10,000 to Plaintiff Joshua J. Lopez will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk.

The settlement is preliminarily approved, and this Motion is **granted as follows:**

1. The Court conditionally certifies, for settlement purposes only, a Class consisting of all non-exempt, hourly employees who worked for Defendants in California at the Settling Locations (defined herein) during the Class Period (i.e., the period from January 9, 2020, through April 30, 2025);
2. The Court preliminarily appoints Emil Davtyan, David Yeremian, Alvin B. Lindsay, Enoch J. Kim, Marta Manus, and the other attorneys of D. Law, Inc. as Class Counsel;
3. The Court preliminarily appoint Plaintiff Joshua J. Lopez as the Class Representative;
4. The Court order preliminary approval of the proposed Class Action and PAGA Settlement Agreement (“Settlement”) on a class-wide basis, direct that the Class Notice to be mailed to the Class, and set a hearing for final review of the proposed Settlement;
5. The Court preliminarily appoints Apex Class Action Administrators as the Administrator to handle the Court Approved Notice of Class Action Settlement and Hearing Date for Final Court Approval (“Class Notice”) and claims administration procedures as set forth in the Settlement; and;
6. The Court preliminarily approves the allocation of PAGA Penalties pursuant to the Settlement
7. the Court will execute the proposed order lodged November 11, 2025, consistent with this tentative ruling and the court clerk shall attach a copy of this tentative ruling. Where the provisions of the proposed order lodged March 2, 2026 are inconsistent with or conflict the terms of this ruling, this ruling shall prevail.
8. Class counsel shall provide notice of this order to the counsel / parties on the service list.

9. No appearance is required at the May 6, 2026 hearing.

10. 9:00 AM CASE NUMBER: C24-00225
CASE NAME: MONICA DUARTE VS. JORGE FIGUEROA
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT (CONTINUED FROM 3/4/26)
FILED BY: FIGUEROA, JORGE
TENTATIVE RULING:

Before the Court is Defendant Jorge Figueroa's Demurrer to Plaintiffs' Second Amended Complaint.

Factual Allegations and Procedural Background

Plaintiffs were both residents of Quail Lodge Retirement Community, an independent senior living community in Antioch, California. (¶2, 10.) They each had a separate lease with Sunshine Retirement Living and/or Sunshine Retirement Living LLC ("Sunshine Entities"). (¶ 10.) Defendant Jorge Figueroa worked at Quail Lodge as the Executive Director while Plaintiff's were residents there. (¶3, 10.)

In August 2023, Plaintiffs intended to get married and were invited by the Quail Lodge staff to get married at the facility. (¶ 10.) Thereafter, Plaintiffs allege that the staff and residents began to assault and harass them. (¶¶ 11-19.) Following these actions, Ms. Duarte was evicted in mid-September 2023, and Mr. Bullock was evicted on October 31, 2023. (¶ 14, 18.)

Specific to Defendant Figueroa, the SAC alleges that he made verbal threats, posted an eviction notice on Ms. Duarte's door, did not explain why she was being evicted, and generally made Plaintiffs feel unsafe and unwelcome. (e.g. ¶¶ 13-15, 55.)

Plaintiff filed their Complaint on January 29, 2024. A First Amended Complaint was filed on March 8, 2024, asserting 14 causes of action. The Sunshine Entities demurred to the FAC, which was sustained as to all causes of action. Thereafter, the Second Amended Complaint was filed on July 17, 2024, alleging the same 14 causes of action. The Sunshine Entities filed a motion for judgment on the pleadings. The MJOP was granted as to: violation of Bane Act (1st CoA); negligent infliction of emotional distress (5th CoA); intrusion into private affairs (7th CoA); and breach of implied warranty of habitability (9th CoA).

The causes of action that remain and to which Defendant Figueroa demurs are: (2nd CoA) assault; (4th CoA) intentional infliction of emotional distress; (6th CoA) negligence; (8th CoA) retaliation – violation of Civil Code § 1942.5; (10th CoA) breach of covenant of quiet enjoyment; (11th CoA) wrongful eviction; (12 CoA) elder abuse; and (13th CoA) negligent hiring, training, supervision, & retention.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the